

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Russo	Team: Squad #10	CCRB Case #: 202201851	☒ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/22/2022 2:20 PM, Tuesday, 03/22/2022 2:30 PM, Thursday, 10/27/2022 10:31 AM	Location of Incident: Aqueduct Avenue between West 181st St and West 182nd St; 46th Precinct Stationhouse; 100 Church St	18 Mo. SOL 9/22/2023	Precinct: 46		
Date/Time CV Reported Thu, 03/24/2022 7:52 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 03/24/2022 7:52 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Clarence Brown	19647	963885	046 PCT
2. PO Joseph Iobbi	21087	964067	046 PCT
3. PO Manolis Kambouris	11618	961850	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Richard Wallace	01419	953551	INT FIO PRG
2. PO Bill Bravo	05673	962954	INT FIO PRG
3. DT3 Dilma Aguirre	05090	955129	INT FIO PRG

Officer(s)	Allegation	Investigator Recommendation
A . PO Joseph Iobbi	Force: On March 22, 2022, on Aqueduct Avenue between West 181st Street and West 182nd Street, Police Officer Joseph Iobbi struck § 87(2)(b) with a vehicle.	A . Substantiated
B . PO Joseph Iobbi	Force: On March 22, 2022, on Aqueduct Avenue between West 181st Street and West 182nd Street, Police Officer Joseph Iobbi used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Clarence Brown	Force: On March 22, 2022, on Aqueduct Avenue between West 181st Street and West 182nd Street, Police Officer Clarence Brown pointed his gun at § 87(2)(b)	C . Substantiated
D . PO Joseph Iobbi	Discourtesy: On March 22, 2022, on Aqueduct Avenue between West 181st Street and West 182nd Street, Police Officer Joseph Iobbi spoke discourteously to § 87(2)(b)	D . Substantiated
E . PO Clarence Brown	Discourtesy: On March 22, 2022, at the 46th Precinct Stationhouse, Police Officer Clarence Brown spoke discourteously to § 87(2)(b)	E . Substantiated
F . PO Manolis Kambouris	Off. Language: On March 22, 2022, at the 46th Precinct Stationhouse, Police Officer Manolis Kambouris made remarks to § 87(2)(b) based upon gender.	F . Substantiated
G . PO Clarence Brown	Discourtesy: On March 22, 2022, at the 46th Precinct Stationhouse, Police Officer Clarence Brown spoke discourteously to § 87(2)(b)	G . Substantiated

Officer(s)	Allegation	Investigator Recommendation
H . PO Clarence Brown	Abuse: On March 22, 2022, at the 46th Precinct Stationhouse, Police Officer Clarence Brown strip-searched § 87(2)(b)	H . Unfounded
I . PO Joseph Iobbi	Untruthful Stmt.: On October 27, 2023, at the CCRB, Police Officer Joseph Iobbi provided a false official statement to the CCRB.	I . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On March 24, 2022, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

On March 22, 2022, at approximately 2:20 p.m., Police Officer Joseph Iobbi, of the 46th Precinct, struck § 87(2)(b) with the door of his unmarked police vehicle on Aqueduct Avenue between West 181st Street and West 182nd Street, in the Bronx (**Allegation A: Force-Vehicle, substantiated**). PO Iobbi exited his vehicle and pushed § 87(2)(b) into the vehicle (**Allegation B: Force-Physical Force, within NYPD guidelines**). Police Officer Clarence Brown, of the 46th Precinct, pointed his weapon at § 87(2)(b) (**Allegation C: Force-Gun Pointed, substantiated**). While searching § 87(2)(b) incident to a lawful arrest, PO Iobbi asked if § 87(2)(b) had an interior pocket so he could put his “shit” inside (**Allegation D: Discourtesy-Word, substantiated**).

Detective Richard Wallace, Detective Dilma Aguirre, and Police Officer Bill Bravo, of the Intel Field Intelligence Office, were also on scene. A friend of § 87(2)(b) § 87(2)(b) also witnessed this encounter.

At approximately 2:30 p.m., on the same day, PO Brown escorted § 87(2)(b) to the cells to be searched. When informing § 87(2)(b) what would happen with his processing, PO Brown told him it was “regular shit” (**Allegation E: Discourtesy-Word, substantiated**). While removing his clothing, Police Officer Manolis Kambouris, also of the 46th Precinct, told § 87(2)(b) to take his “girl’s earrings off” (**Allegation F: Offensive Language, substantiated**). PO Brown asked if § 87(2)(b) was wearing “fucking long johns” (**Allegation G: Discourtesy-Word, substantiated**). PO Brown allegedly strip searched § 87(2)(b) (**Allegation H: Abuse of Authority-Strip-search, unfounded**).

§ 87(2)(g)

§ 87(2)(b) was arrested as a result of this incident, under arrest # § 87(2)(b) and he was charged with § 87(2)(a) 160.50 § 87(2)(a) 160.50.

The investigation obtained BWC from Det. Wallace (**BR01**), PO Iobbi (**BR02**), and PO Brown (**BR03, BR04**), as well as surveillance footage from a building across the street—79-81 West 182nd Street (**BR05**).

Findings and Recommendations

Allegation (A) Force: On March 22, 2022, on Aqueduct Avenue between West 181st Street and West 182nd Street, Police Officer Joseph Iobbi struck § 87(2)(b) with a vehicle.

Allegation (B) Force: On March 22, 2022, on Aqueduct Avenue between West 181st Street and West 182nd Street, Police Officer Joseph Iobbi used physical force against § 87(2)(b).

Allegation (C) Force: On March 22, 2022, on Aqueduct Avenue between West 181st Street and West 182nd Street, Police Officer Clarence Brown pointed his gun at § 87(2)(b).

§ 87(2)(f), § 87(2)(e)

DD5#3 (**BR07**) indicates that on the same day, Det. Wallace, with the assistance of a PO Bravo, Det. Aguirre, PO Brown, and PO Iobbi, located the two males matching the description walking southbound on Aqueduct Avenue. § 87(2)(b) ran away from the officers and dropped a

firearm, which officers recovered (**BR25**). PO Iobbi and PO Brown arrested § 87(2)(b). After a brief investigation, the officers found the male with the firearm and placed him under arrest (**BR24**). § 87(2)(b)'s arrest was later voided.

§ 87(2)(b) (**BR08**) stated that prior to encountering the officers, he was on West 181st Street and Aqueduct Avenue, walking toward a bodega with his friend. His friend, whose name § 87(2)(b) declined to provide, continued walking and did not enter the bodega with § 87(2)(b). While inside of the store, a police officer walked in, made eye contact with everyone inside, and then ran out. § 87(2)(b) did not know who or what the officer was looking for. § 87(2)(b) exited the store to determine what was occurring and saw multiple officers running toward West 179th Street. After re-entering the store to purchase what he initially intended, he exited the store and walked two blocks to Aqueduct Walk.

While walking on the pedestrian walkway of Aqueduct Park, an unmarked vehicle approached him. The front passenger opened his door as the vehicle was in motion, causing the door to make contact with § 87(2)(b)'s back on the left-hand side. He believed the door striking him was intentional. The two officers exited the vehicle. One of the officers grabbed § 87(2)(b) by his jacket and pushed him against the vehicle. § 87(2)(b) did not feel pain. § 87(2)(b) did not allege that PO Brown pointed his gun.

Det. Wallace's BWC (**BR01**) § 87(2)(g) At the 00:48 mark, he approaches a male dressed in black and red with his hands up—§ 87(2)(b) § 87(2)(b) runs away and the officers chase after him. At the 01:07 mark, Det. Wallace stops and finds a gun on the grass. At the 01:28 mark, just after picking up the gun, Det. Wallace enters a vehicle with PO Iobbi, where they continue searching for § 87(2)(b) § 87(2)(b). At the 04:30 mark, after continuing their search, Det. Wallace instructs PO Iobbi and PO Brown to watch "his boy § 87(2)(b) at that bodega," and tells them to try and "lock him down." Det. Wallace describes § 87(2)(b) as the one with the "green jacket with the wheat Timbs."

Surveillance video from building 79-81 on West 182nd Street (**BR05**) captures these allegations from a right angle, at a distance. At the 05:07 mark, § 87(2)(b) who is wearing a green coat and blue jeans, walks at an average pace on the pedestrian walkway in Aqueduct Park. An unmarked black vehicle approaches § 87(2)(b) on his left side. § 87(2)(b) does not look at or acknowledge the car approaching from behind, nor does he move at all to avoid it. The passenger of the vehicle, PO Iobbi, opens the passenger door as the vehicle is approaching § 87(2)(b). The door collides with § 87(2)(b)'s back, on the left-hand side, causing him to stumble forward. PO Iobbi immediately steps out of the vehicle, grabs § 87(2)(b)'s coat, and pulls him toward the unmarked vehicle. PO Iobbi pushes § 87(2)(b) toward the vehicle, chest-first. At the 05:14 mark, PO Brown walks around the vehicle with his gun pointed at § 87(2)(b). He puts the gun down at the 05:21 mark.

PO Iobbi's BWC (**BR02**) captures this incident from a closer angle. At the 07:50 mark, PO Brown drives the vehicle toward § 87(2)(b) who is on the right side. PO Iobbi, who is in the passenger seat, opens the passenger door while the vehicle is still in motion and approaching § 87(2)(b) § 87(2)(b). The passenger door collides with § 87(2)(b)'s back. The officers do not make any statement to § 87(2)(b) prior to his contact with the vehicle. Upon exiting, PO Iobbi tells him to "get over here" and to "stop." He grabs § 87(2)(b)'s left arm and places him against the vehicle. § 87(2)(b) is facing the vehicle and PO Iobbi brings his arms to his back. He places him in handcuffs and tells him to drop his phone.

PO Brown's BWC (**BR04**) § 87(2)(g) at the 00:55 mark, PO Brown is captured approaching § 87(2)(b) with his gun drawn. PO Brown points the firearm at § 87(2)(b) while PO Iobbi is holding both of his arms behind his back. PO Brown lowers his firearm at the 01:03 mark.

§ 87(2)(g) § 87(2)(b) was in a parked vehicle, about 12 feet away from Aqueduct Walk. He was facing West 182nd Street when he noticed the unmarked vehicle

approaching § 87(2)(b). As PO Brown approached § 87(2)(b) he had his weapon already drawn and pointed at § 87(2)(b)'s head.

PO Iobbi (**BR10**) stated that he was assisting the Field Intelligence Officers with an investigation into two individuals and a firearm. PO Iobbi could not recall the descriptions of the two individuals, except that they were two Hispanics and one of them wore a green coat. PO Iobbi learned over the radio that officers were pursuing two individuals who had evaded the police. PO Iobbi saw § 87(2)(b) on the pedestrian walkway of Aqueduct Avenue. PO Iobbi did not recall which of the two individuals was believed to be in possession of a weapon. PO Brown and PO Iobbi drove onto the pedestrian pathway and stopped the vehicle when they were side by side with § 87(2)(b). The vehicle was not moving at a fast speed. PO Iobbi denied that any part of the vehicle made contact with § 87(2)(b) despite watching his BWC and the surveillance footage. PO Iobbi stepped out of the vehicle, grabbed § 87(2)(b)'s left hand, and guided him to the side of the car in order to place the front part of his body along the top of the car. He then handcuffed both of § 87(2)(b)'s hands. PO Iobbi did not recall § 87(2)(b) posing any sort of resistance. § 87(2)(b) was under arrest at that point for being one of the individuals who supposedly had a firearm. § 87(2)(b) had a cellphone in his pants that created a bulge; however, there was no other indication that § 87(2)(b) had a weapon.

PO Brown's statement (**BR11**) was § 87(2)(g) the following § 87(2)(g). One of the suspects ran away from the officers and PO Brown chased after him. When circling the area, the Field Intelligence Officers indicated that they apprehended one of the suspects and found the firearm. They relayed that they were still looking for the male in green, § 87(2)(b). While apprehending § 87(2)(b) PO Brown approached with his gun drawn. He pointed his weapon at § 87(2)(b) for about five seconds, given that the officers did not yet know if § 87(2)(b) had a firearm on his person. PO Brown did not recall seeing anything on § 87(2)(b) person that may have indicated he had a weapon on him such as a bulge or anything else to this effect.

The investigation received negative results for any Threat, Resistance, or Injury reports prepared regarding this incident (**BR12**).

Patrol Guide Procedure 221-01 (**BR13**) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." The "NOTE" section states that drawing a firearm prematurely or unnecessarily limits a uniformed member's options in controlling a situation and may result in an unwarranted or accidental discharge of the firearm. The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present.

Patrol Guide Procedure 221-02 (**BR14**) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control. The use of deadly force against a person can only be used to protect MOS and/or the public from imminent serious physical injury or death.

§ 87(2)(g)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] As such, it is recommended that **Allegation A** be substantiated.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Thus, it is recommended that **Allegation B** be closed as **within NYPD guidelines**.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] As such, it is recommended that **Allegation C** be substantiated.

Allegation (D) Discourtesy: On March 22, 2022, on Aqueduct Avenue between West 181st Street and West 182nd Street, Police Officer Joseph Iobbi spoke discourteously to § 87(2)(b)

§ 87(2)(g)
[REDACTED].
PO Iobbi's BWC (**BR02**) shows, at the 08:36 mark, that while searching § 87(2)(b) PO Iobbi asks § 87(2)(b) if he has interior pockets so he could put his "shit" inside.

PO Iobbi (**BR10**) stated that he had no independent recollection of using profanity when speaking to § 87(2)(b) even after watching his BWC twice. He was unable to hear the use of the word "shit" in the video.

Patrol Guide procedure 200-02 (**BR15**) notes that the NYPD's mission is to, in partnership with the community, value human life, respect the dignity of each individual, and render our services with courtesy and civility, while also maintaining a higher standard of integrity than is generally expected of others.

DAO-DCT 2015-15012 (**BR16**) found that officers are prohibited from using discourteous language, except when in a highly dangerous or stressful situation. Officers shall not use discourteous language that serves no legitimate purpose other than to belittle.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] As such, it is recommended that **Allegation D** be substantiated.

Allegation (E) Discourtesy: On March 22, 2022, at the 46th Precinct Stationhouse, Police Officer Clarence Brown spoke discourteously to § 87(2)(b)

Allegation (F) Offensive Language: On March 22, 2022, at the 46th Precinct Stationhouse, Police Officer Manolis Kambouris made remarks to § 87(2)(b) based upon gender.

Allegation (G) Discourtesy: On March 22, 2022, at the 46th Precinct Stationhouse, Police Officer Clarence Brown spoke discourteously to § 87(2)(b)

§ 87(2)(g)

PO Brown's BWC (**BR04**) captures him bringing § 87(2)(b) to the holding cells within the 46th Precinct stationhouse. At the 11:00 mark, when explaining the arrest process to § 87(2)(b), PO Brown asks if he has been "locked up" before. When § 87(2)(b) confirms, PO Brown says that this is, "regular shit." At the 13:44 mark, while removing his belongings, PO Kambouris tells § 87(2)(b) to take his "girl's earrings off." § 87(2)(b) responded, "My girl's earrings cost [more than] whatever you got on." PO Kambouris says, "Guess what? They're coming off, so take your girl's earrings off." At the 17:15 mark, when searching § 87(2)(b), PO Brown asks if he is wearing "fucking long johns."

PO Brown (**BR11**) stated that he potentially used profanity when speaking with § 87(2)(b) as they were using regular speech and both were probably casually cursing at each other. He could have said, "That's regular shit" in response to § 87(2)(b) confirming he had been arrested before. There was no particular reason why he would have said this, noting that it would have been part of regular conversation. When asking if § 87(2)(b) was wearing "fucking long johns," PO Brown stated that he was just using regular speech in a question form and did not say it in a hostile manner.

PO Kambouris is on long term sick leave and declined to provide a statement regarding this incident (**BR26**).

Patrol Guide procedure 200-02 (**BR15**) notes that the NYPD's mission is to, in partnership with the community, value human life, respect the dignity of each individual, and render our services with courtesy and civility, while also maintaining a higher standard of integrity than is generally expected of others.

Administrative Guide 304-06 (**BR17**) notes that officers are prohibited from using discourteous or disrespectful remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

DAO-DCT 2015-15012 (**BR16**) found that officers are prohibited from using discourteous language, except when in a highly dangerous or stressful situation. Officers shall not use discourteous language that serves no legitimate purpose other than to belittle.

§ 87(2)(g)

As such, it is recommended that **Allegations E and F** be **substantiated**.

§ 87(2)(g)

it is recommended that **Allegation G** be **substantiated**.

Allegation (H) Abuse of Authority: On March 22, 2022, at the 46th Precinct Stationhouse, Police Officer Clarence Brown strip-searched § 87(2)(b)

§ 87(2)(b) (**BR08**) stated that once he was lodged in the cells at the 46th Precinct, PO Brown and two other officers that § 87(2)(b) could not recall brought him into a private room by the cells. The door to the room was open, but they had privacy. PO Brown told § 87(2)(b) to take his clothes off, bend over, and cough, which § 87(2)(b) described as a strip search. § 87(2)(b) took all of his clothes off, including his socks, and left his underwear on. He turned his back to the

officers, pulled down his underwear, squatted for about two seconds, coughed, and then immediately pulled his underwear up. He put his clothes back on and was escorted back to the cells. The entire strip search was about a minute.

PO Brown's BWC (**BR04**) shows that, at the 11:49 mark, § 87(2)(b) is in a private room adjacent to the holding cells. PO Brown tells him to take his jacket off. At the 12:08 mark, § 87(2)(b) begins taking off his shirt. PO Brown and PO Kambouris stop him, telling him that no one told him to get naked. PO Brown states that they told him he would be searched, not strip-searched. PO Kambouris tells § 87(2)(b) to take his shoelaces off. At the 16:34 mark, PO Brown tells § 87(2)(b) to take his earrings off. At the 17:02 mark, he tells § 87(2)(b) to step toward the wall and put his hands on the wall. As he begins searching him, PO Brown first pulls up § 87(2)(b)'s pants, which have slipped down slightly. At the 17:30 mark, § 87(2)(b) pulls down his pants and boxers, turns around, and opens the cheeks of his buttocks, all without being prompted to do so by any officer. PO Brown says that he did not tell him to "strip out" and PO Iobbi tells him to lift his pants up. The footage does not capture any officer confirming that § 87(2)(b) would be strip searched or instructing § 87(2)(b) to lower his pants.

PO Brown (**BR11**) stated that § 87(2)(b) felt the need to pull his pants down, but PO Brown told him to pull them up and confirmed that he was not conducting a strip search. Strip searches must be directed by a sergeant, with the sergeant present, and when looking for narcotics or some other contraband. He denied conducting a strip search with § 87(2)(b).

Patrol Guide Procedure 205-08 (**BR18**) notes that a strip search is any search in which an individual's undergarments and or private areas are exposed. Strip searches may only be conducted with the knowledge and approval of the arresting officer's immediate supervisor and when the arresting officer reasonably suspects that weapons, contraband, or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by a standard search.

§ 87(2)(g)

As such, it is recommended that **Allegation H** be closed as **unfounded**.

Allegation (I) Untruthful Statement: On October 27, 2023, at the CCRB, Police Officer Joseph Iobbi provided a false official statement to the CCRB.

Surveillance video from building 79-81 on West 182nd Street (**BR05**) captures PO Brown and PO Iobbi's vehicle making contact with § 87(2)(b) from a distance. At the 05:07 mark, their unmarked vehicle approaches § 87(2)(b) who is walking on the pedestrian walkway in Aqueduct Park, from the left. As they get right next to § 87(2)(b) PO Iobbi opens the passenger door, while the vehicle is still in motion. The door collides with § 87(2)(b)'s back, on the left-hand side, causing him to stumble forward.

PO Iobbi's BWC (**BR02**) captures this allegation from a closer angle. At the 07:50 mark, their vehicle approaches § 87(2)(b) on the left side. PO Iobbi opens the passenger door, while the vehicle was still in motion. The door collides with § 87(2)(b)'s back.

PO Iobbi (**BR10**), who was interviewed at the CCRB on October 27, 2022, denied that any part of his vehicle made contact with § 87(2)(b). When presented with his BWC (**BR02**), from the 07:27 mark to the 07:34 mark, PO Iobbi denied seeing the passenger door of his vehicle make contact with § 87(2)(b). When presented with the surveillance footage from across the park (**BR05**), from the 05:03 mark to the 05:11 mark, PO Iobbi also denied seeing the passenger side door of his vehicle make contact with § 87(2)(b). The investigation noted that § 87(2)(b) stumbled forward and when asking PO Iobbi what could have caused that, PO Iobbi stated that he did not know. He added that § 87(2)(b) was likely startled by the fact that the vehicle was on the pedestrian parkway.

NYPD Administrative Guide 304-10 (**BR19**) defines a false statement as an intentional statement that a member of service knows to be untrue, which is material to the outcome of an

investigation. A material fact is defined as a significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. Officers are prohibited from making false official statements.

§ 87(2)(g)

it is recommended that **Allegation I** be **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been named a party in one other CCRB complaint, in which he was named the victim of two allegations (**BR20**):
 - § 87(2)(b)
- PO Brown has been a member of service for five years. He has been named the subject of seven additional CCRB complaints and 23 allegations, five of which have been

substantiated § 87(2)(g), § 87(4-b)

- 201909527 involves substantiated allegations of entry of premises, search of premises, and threat of arrest. The CCRB recommended command discipline B and the NYPD did not impose a penalty. § 87(2)(g), § 87(4-b)
- PO Iobbi has been a member of service for five years. He has been named the subject in four other CCRB complaints and 10 allegations, four of which have been substantiated § 87(2)(g), § 87(4-b).
 - 201909527 involves substantiated allegations of entry of premises and search of premises. The CCRB recommended command discipline A and the NYPD did not impose a penalty. § 87(2)(g), § 87(4-b)
- PO Kambouris has been a member of service for six years. He has been named the subject in 25 other CCRB complaints and nine allegations, four of which have been substantiated:
 - 201808680 involves a substantiated allegation of discourteous word. The CCRB recommended command discipline A and the NYPD imposed it.
 - 202200726 involves substantiated allegations of refusal to provide name and shield number, and a discourteous action. The CCRB recommended command discipline A. The NYPD Penalty is not noted.

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- On May 9, 2023, the investigation submitted a notice of claim inquiry through the FOIL portal. This report will be updated upon receipt of a response (BR21).
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 10

Investigator: Jessica Russo SI Jessica Russo 05/15/2023
Signature Print Title & Name Date

Squad Leader: Maura R. Roche IM Maura R. Roche 05/19/2023
Signature Print Title & Name Date

Reviewer: _____

Signature

Print Title & Name

Date